

Electronic equipment using bluetooth (bluetooth watch, earplug bluetooth...)

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - Electronic equipment using Bluetooth (Bluetooth watch, earplug Bluetooth).

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Per Decathlon's request, this card covers multiple potential products.

Federal Law:

Intentional Radiators. Any product with Bluetooth functionality will be considered an "intentional radiator" under Federal Communication Commission (FCC) rules. Intentional radiators are defined as any "device that intentionally generates and emits radio frequency energy by radiation or induction." [47 C.F.R. § 15.3\(o\)](#). Examples of intentional radiators include, but are not limited to wireless temperature probes, RF universal remotes, cordless telephones, WI-FI, and Bluetooth devices.

Battery Charging Systems. The U.S. Department of Energy has certain energy efficiency requirements for Battery Charging Systems, defined as "a device that charges batteries for consumer products, including battery chargers embedded in other consumer products." To the extent the products in this category are used to charge batteries, they will be considered "battery chargers." [10 C.F.R. § 430.2](#) See the Sun Charger, Electrical Charger, USB Charger card for additional information on this line of requirements.

California Law:

California Law (Batteries and CEC Battery Charging System). Some of the products in this category may include a state-regulated "battery charging system" (BCS). BCS are defined under California law as "all rechargeable batteries or devices incorporating a rechargeable battery and the chargers used with them." [20 Cal. Code Regs. §1602](#). Please see the

Sun Charger, Electrical Charger, USB Charger card for potentially applicable definitions and information regarding federal preemption of certain California Appliance Efficiency requirements.

Some of the products in this category may also include batteries. Please see the Batteries card for relevant federal and state definitions.

California Law (Covered Electronic Devices). California requires that an advance recovery fee be collected from consumers at the point of sale of "covered electronic devices" in the state. Other requirements, including manufacturer registration and fees, and product labeling with manufacturer and brand also apply.

Under California law, a "covered electronic device" (CED) is an electronic device that is covered by the Electronic Waste Recycling Act. The law defines a CED as a "a video display device containing a screen greater than 4 inches, measured diagonally, that is identified in the regulations adopted by" DTSC. Any video display device with a screen greater than four inches in size that fits into one of the following categories is a CED:

1. Cathode ray tube containing devices (CRT devices)
2. Cathode ray tubes (CRTs)
3. Computer monitors containing cathode ray tubes
4. Laptop computers with liquid crystal display (LCD)
5. LCD containing desktop monitors
6. Televisions containing cathode ray tubes
7. Televisions containing liquid crystal display (LCD) screens
8. Plasma televisions
9. Portable DVD players with LCD screens

See [CalRecycle Electronic Waste Recycling](#) page and <https://www.calrecycle.ca.gov/Electronics/Manufacturer/> for additional details. Note that material restrictions (RoHS-like restrictions) also apply to CEDs, restricting heavy metal content. See <https://dtsc.ca.gov/covered-electronic-devices/> for additional information.

Based on our understanding of Decathlon's products in this category, these products will all be excluded from California's CED law because they do not meet the definition of CED. However, if a product does fall within one of the definition of CED, please see the Sun Charger, Electrical Charger, USB Charger card for additional details on the requirements.

Illinois Law:

Illinois Law (Covered Electronic Devices). A "covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. [415 ILCS 151](#). Note that this law will be repealed as of December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). The manufacturer's name must also be permanently affixed to and readily visible on the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

1. a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

2. the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year.

[415 ILCS 151/1-30\(a\)](#). Decathlon products covered by this card would not necessarily fall within this regulated electronics category; however, if a product does fall within the definition of CED, please see the Sun Charger, Electrical Charger, USB Charger card for additional details on the requirements.

Maine Law:

Maine Law (Covered Electronic Devices). A "covered electronic device" is "a desktop printer, a video game console, a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device with a screen that is greater than 4 inches measured diagonally and that contains one or more circuit boards." [ME Stat. Tit. 38, §1610\(2\)\(C\)](#). Automobiles, household appliances, large pieces of commercial or industrial equipment, such as commercial medical equipment "that contain[] a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device that is contained within, and is not separate from, the larger piece of equipment;" other medical devices as defined under the Federal Food, Drug, and Cosmetic Act; and cellular telephones "subject to section 2143," are not covered electronic devices. [ME Stat. Tit. 38, §1610\(2\)\(C\)](#).

Decathlon products covered by this card would not necessarily fall within regulated electronics categories; however, if a product is a "covered electronic device", please see the Sun Charger, Electrical Charger, USB Charger card for additional details on the requirements.

Massachusetts Law:

Massachusetts Law (Mercury-Added Products). No person may sell or distribute a mercury-added product in Massachusetts unless the manufacturer has created and filed with the Massachusetts Department of Environmental Protection a collection plan for end-of-life mercury-added products, including a manufacturer take-back system or a recycling plan, the requirements of which are detailed in the regulations. [M.G.L. ch. 21H, § 6J, 310 CMR 75](#). A "mercury-added product" is "a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices," with certain exceptions which are inapplicable to Decathlon products. [M.G.L. ch. 21H, § 2](#). Every manufacturer of mercury-added products sold in Massachusetts is financially responsible for the collection and recycling systems and must pay an annual registration fee. These laws do not apply to mercury-added button cell batteries; mercury-added formulated products intended to be totally consumed in use, such as reagents, cosmetics, pharmaceuticals and other laboratory chemicals; or products where the only mercury contained in the product comes from a removable mercury-added button cell battery or a mercury-added lamp. [M.G.L. ch. 21H, § 6J, 310 CMR 75](#).

New Jersey Law:

New Jersey Law (Covered Electronic Devices). For purposes of New Jersey's laws pertaining to electronic equipment recycling, a "covered electronic device" is defined to include "a desktop or personal computer, computer monitor, portable computer, or television sold to a consumer." [N.J.S.A. § 13:1E-99.95](#). To qualify as computers or televisions, the device must have a screen greater than four inches when measured diagonally. It does not appear that any Decathlon products fall within these categories. For additional information on the NJ program, see <https://www.nj.gov/dep/dshw/ewaste/index.html>, <https://www.nj.gov/dep/dshw/ewaste/manufacturers.html> and <https://www.nj.gov/dep/dshw/ewaste/manufacturersltr.pdf>.

New York Law:

New York Law (Mercury-Added Products). A “mercury-added consumer product” is “any device or material into which elemental mercury or mercury compounds are intentionally added during such device's or material's formulation or manufacture, and in which the continued presence of mercury is required to provide a specific characteristic, appearance or quality, or to perform a specific function. Such term shall include, but not be limited to mercury-containing: . . . (b) thermometers . . . (d) medical or scientific instruments; (e) electrical relays and other electrical devices; (f) lamps; and (g) batteries sold to consumers, not including button batteries.” [NY Env't Conserv. Law § 27-2101](#).

New York Law (Covered Electronic Equipment). Under New York electronics recycling law, “covered electronic equipment” does not include any motor vehicle or any part thereof; camera or video camera; portable or stationary radio; household appliances such as clothes washers, clothes dryers, refrigerators, freezers, microwave ovens, ovens, ranges or dishwashers; equipment that is functionally or physically part of a larger piece of equipment intended for use in an industrial, research and development or commercial setting; security or anti-terrorism equipment; monitoring and control instrument or system; thermostat; hand-held transceiver; telephone of any type; portable digital assistant or similar device; calculator; global positioning system (GPS) receiver or similar navigation device; a server other than a small-scale server; a cash register or retail self-checkout system; a stand-alone storage product intended for use in industrial, research and development or commercial settings; commercial medical equipment that contains within it a cathode ray tube, a flat panel display or similar video display device, and is not separate from the larger piece of equipment; or other medical devices as that term is defined under the Federal Food, Drug and Cosmetic Act.

Additional information on the New York electronics recycling law, including registration, reporting, marking covered devices with manufacturer name, and fees, is available at <http://www.dec.ny.gov/chemical/66845.html>.

Decathlon products covered by this card would not necessarily fall within regulated electronics categories; however, if a product is “covered electronic equipment”, please see the Sun Charger, Electrical Charger, USB Charger card for additional details on the requirements.

Texas Law:

Texas Law (Electronic Waste). Texas electronic waste law is limited to televisions and computers. See https://www.tceq.texas.gov/p2/recycle/electronics/tv_recycling.html <https://www.tceq.texas.gov/p2/recycle/electronics/manufacturer-list.html>, and <https://www.tceq.texas.gov/p2/recycle/electronics/computer-recycling.html> for additional information.

Washington Law:

Washington Law (Electronic Waste). Washington requires manufacturers of TVs, computers, monitors, laptops, tablets, and/or P-DVD players to participate in the E-Cycle Washington product stewardship program. Manufacturers must be listed on the [Manufacturer Registration list](#), register annually with the state, pay an annual administrative fee, and participate in a recycling plan in order to sell in or into Washington. Covered products must also be permanently labeled with the manufacturer's brand (name or logo identifying an electronic product in the consumer marketplace and attributing the electronic product to a manufacturer). See <https://ecology.wa.gov/Regulations-Permits/Guidance-technical-assistance/Electronics-Ecycle-guidance-and-reports/Manufacturers> for additional information.

Comments

Comments

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law:

Country of Origin Marking Requirements. All products are required to comply with country of origin marking regulations. See [19 U.S.C. § 1304](#); [19 C.F.R. § 134.11](#).

Intentional Radiators. Any product with Bluetooth functionality will be considered an "intentional radiator" and will be subject to regulation by the Federal Communications Commission (FCC). If the device is subject to certification or declaration, the following statement must appear in a conspicuous location on the device, or if not practicable, in a prominent location in the user manual:

"This device complies with part 15 of the FCC Rules. Operation is subject to the following two conditions: (1) This device may not cause harmful interference, and (2) this device must accept any interference received, including interference that may cause undesired operation."

[47 C.F.R. § 15.19](#).

Note: Except when otherwise stated in a rule, an intentional radiator is required to be approved using the certification procedure.

Depending on the type of FCC equipment authorization applicable to the device (see the "Certifications/Registrations" section), additional or different labels may be required. See below for specific guidance on the labels required.

Guidelines for labeling and User Information for RF devices are contained in the following attachments:

- [784748 D01 Labelling Part 15 18 Guidelines v09r02](#) provides general guidance for Part 15 and Part 18 labeling and user information.
- [748748 D02 e labelling v02](#) provides guidelines for displaying label information electronically (e-label).

Note: Bluetooth devices are subject to Part 15.

Please see the Batteries card for federal and state labeling requirements related to some rechargeable batteries.

Please see the Sun Charger, Electrical Charger, USB Charger card for federal and state requirements related to Battery Charging Systems.

FCC Voluntary Labeling Program. The FCC has established a voluntary labeling program for wireless consumer Internet of Things (IoT) products. The FCC's definition of an IoT device is: "(1) an internet-connected device capable of intentionally emitting RF energy that has at least one transducer (sensor or actuator) for interacting directly with the physical world; coupled with (2) at least one network interface (e.g., Wi-Fi, Bluetooth) for interfacing with the digital world. [47 C.F.R. § 8.203\(i\)](#). Some of Decathlon's products may be eligible for the voluntary labeling program. See [47 C.F.R. § 8.205](#). Applicants for the voluntary labeling program must submit their products for testing and certify in their application that the applicant has taken every reasonable measure to create a securable product. [47 C.F.R. § 8.208](#). If the application is accepted, the FCC will allow the product to use the Cyber Trust Mark. [47 C.F.R. § 8.209](#).

Massachusetts Law:

Massachusetts Law (Mercury-Added Products). No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows. [M.G.L. c.21H](#), § 6K, [310 CMR 75](#). A "mercury-added product" is a product to which the manufacturer intentionally introduces mercury. The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Before a mercury-added product is sold in Massachusetts, the manufacturer must (1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or (2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse. Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser as part of the product's description either in the catalog or on the website used to place the online order that the product contains mercury and clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life.

New York Law:

New York Law (Mercury-Added Products). The labeling of "mercury-added consumer products" must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. [NY Env't Conserv. L. § 27-2103](#). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product. [NY Env't Conserv. L. § 27-2103](#).

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Please see the Batteries card for federal and state labeling requirements related to batteries, if applicable.

If this product contains a battery charging system, please see the Sun Charger, Electrical Charger, and USB Charger card for federal and state requirements.

Massachusetts Law:

Massachusetts Law (Mercury-Added Products). In addition to the label on the product, the packaging for a mercury-added product must also be labeled, except when the product label can easily be viewed through the packaging, to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to be managed properly at the end of its useful life [M.G.L. c.21H](#), § 6K, [310 CMR 75](#). The label must be consistent with the product labeling requirements.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life, as part of the product's description either in the catalog or on the website used to place the online order.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Federal Law:

Radio Frequency Devices. The user manual must caution the user that changes or modifications not expressly approved by the party responsible for compliance could void the user's authority to operate the equipment. [47 C.F.R. § 15.21](#). In cases where the manual is provided only in a form other than paper, such as on a computer disk or over the Internet, the information required by this section may be included in the manual in that alternative form, provided the user can reasonably be expected to have the capability to access information in that form.

Note: If it is not practicable to put the required FCC notice on the product (see product labeling, above), this language should be included in the user manual.

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Federal Law:

No warnings are required; however, in general, instructions or labels should identify all reasonably foreseeable hazards associated with a product and state the consequences of consumer actions explicitly. See CPSC, [Mfr.'s Guide to Developing Consumer Prod. Instructions](#) (October 2003).

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

See the "Batteries" card for further information on regulations applicable to some batteries.

Illinois Law:

Illinois Law (Lead). Illinois prohibits the sale of any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law. [410 Ill. Comp. Stat. 45/6](#). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: ""WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN." The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 C.F.R. § 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Federal Law:

Target Age. Federal law does not require that a specific age range be identified, however, if the product would be more hazardous for children below a certain age, we recommend stating a minimum age to minimize liability for use by children below that age.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal Law:

Radio Frequency Devices. The FCC may issue a cease-and-desist order to any person violating the FCC's radio frequency rules. [47 U.S.C. § 312\(b\)](#).

Please see the Batteries card for penalties related to violation of battery regulations.

California Law:

California Law (Batteries and Battery Charging Systems). If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. If this product includes a battery charging system, note that violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties of up to \$2,500 per unit. [20 Cal. Code Regs. § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the Sun Charger, Electrical Charger, USB Charger card for additional details.

Illinois Law:

Illinois Law (Lead). A manufacturer or importer who fails to properly label products containing paint or lead-bearing substances is subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well. [410 Ill. Comp. Stat. 45/12.2\(b\)](#).

Massachusetts Law:

Massachusetts Law (Mercury Added Products). A violation of Massachusetts' laws regarding mercury-added products may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occur is a separate offense [M.G.L. c.21H, § 8](#).

New York Law:

New York Law (Mercury-Added Products). Violation of New York's mercury-added consumer products labeling rules is punishable by a fine of up to \$100 for the first violation and up to \$500 for additional violations. [NY Env't Conserv. L. § 71-2724](#).

Comments

Comments

The FCC lists recent enforcement actions related to radio frequency devices here: <https://www.fcc.gov/enforcement/orders>.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Federal Law:

If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Maine Law:

Maine Law (Covered Electronic Devices). Covered electronic device manufacturers are subject to certain requirements including that they “pay the reasonable operational costs of the consolidator attributable to the handling of all covered electronic devices received at consolidation facilities in this State, the transportation costs from the consolidation facility to a licensed recycling and dismantling facility and the costs of recycling.” “Reasonable operational costs’ includes the costs associated with ensuring that consolidation facilities are geographically located to conveniently serve all areas of the State as determined by the department. The recycling of each type of covered electronic device must be funded by allocating the cost of the program among the manufacturers selling covered electronic devices in the State on a basis proportional to the manufacturer’s national market share of the type of covered electronic device.” [ME Stat. Tit. 38, § 1610\(5\)](#). The department annually determines each manufacturer’s recycling share based on readily available national market share data and may determine that a manufacturer’s market share is de minimis if it is less than 1/10 of 1% of the market share. “A manufacturer whose market share is determined de minimis by the department is not responsible for payment of a pro rata share for the corresponding billing year. The total market shares determined de minimis by the department must be proportionally allocated to and paid for by the manufacturers that have 1/10 of 1% or more of the market of each type of covered electronic device.” [ME Stat. Tit. 38, § 1610\(5\)](#).

Manufacturers must also “work cooperatively with consolidators to ensure implementation of a practical and feasible financing system. Within 90 days of receipt of an invoice, a manufacturer shall reimburse a consolidator for allowable costs incurred by that consolidator.” [ME Stat. Tit. 38, § 1610\(5\)](#).

Decathlon products covered by this card would not necessarily fall within regulated electronics categories; however, if a product is a “covered electronic device”, please see the Sun Charger, Electrical Charger, USB Charger card for additional details on the requirements.

Maine (Electronic Waste Recycling). According to Maine’s Department of Environmental Protection website, “Maine’s E-Waste Law sets up an Extended Producer Responsibility system to facilitate the recycling of Covered Electronic Devices from Covered Entities. . . Covered Entities are households, NGOs with 100 or fewer employees, k-12 schools, and businesses with 100 or fewer employees, so products designed for use by businesses are included in the law.” See [Department of Environmental Protection website](#).

Maine law requires CED manufacturers (defined as the brand owner or, if the brand owner has no U.S. presence, the first U.S. importer of the device) to register annually and pay an annual registration fee, and pay for recycling costs associated with their products. Id.

“Manufacturers must register with Maine DEP before offering a CED for sale in or into Maine; if companies are selling online or into the U.S., a CED could be sold or resold into Maine. Companies must re-register by April 1 each year thereafter. Annual registration includes the reporting of total national sales data: all sales of covered products, regardless of where in the US they were sold or who bought them. Registration fees are either \$3000, \$750, or \$0 depending on a manufacturer’s market share. Register by filling out our [registration form](#) (PDF) and returning it to Maine DEP. Manufacturers can also fill out the optional [credit form](#), which could result in lower recycling costs.” Maine also accepts “registrations via the [ERCC portal](#) (off-site), which streamlines registration in multiple states.” Id.

“The Maine program uses state [approved consolidators](#) (PDF) to collect, sort, and, often, recycle electronics, so manufacturers are not required to make these arrangements.” Id. “Recycling is billed according to a manufacturer’s current market share of a particular product type. All manufacturers with more than 0.1% national market share for a product type are given a [recycling share](#) (PDF) based on their market share. The approved consolidators bill manufacturers according to each manufacturer’s assigned recycling share at a rate approved by the Department which accounts for geographic differences in collection sites served. Manufacturers can lower their recycling shares by selling EPEAT certified electronics or running their own takeback programs.” Maine [Department of Environmental Protection website](#).” Id.

Massachusetts Law:

Massachusetts Law (Mercury-Added Products). No person may sell or distribute a mercury-added product in Massachusetts unless the manufacturer has created and filed with the Massachusetts Department of Environmental Protection a collection plan for end-of-life mercury-added products, including a manufacturer take-back system or a recycling plan, the requirements of which are detailed in the regulations. [M.G.L. ch. 21H, § 6J, 310 CMR 75](#). Every manufacturer of mercury-added products sold in Massachusetts is financially responsible for the collection and recycling systems and must pay an annual registration fee. These laws do not apply to mercury-added button cell batteries; mercury-added formulated products intended to be totally consumed in use, such as reagents, cosmetics, pharmaceuticals and other laboratory chemicals; or products where the only mercury contained in the product comes from a removable mercury-added button cell battery or a mercury-added lamp. [M.G.L. ch. 21H, § 6J, 310 CMR 75](#).

New York Law:

New York Law (Mercury-Added Products). A “mercury-added consumer product” is “any device or material into which elemental mercury or mercury compounds are intentionally added during such device's or material's formulation or manufacture, and in which the continued presence of mercury is required to provide a specific characteristic, appearance or quality, or to perform a specific function. Such term shall include, but not be limited to mercury-containing: . . . (b) thermometers . . . (d) medical or scientific instruments; (e) electrical relays and other electrical devices; (f) lamps; and (g) batteries sold to consumers, not including button batteries.” [NY Env't Conserv. Law § 27-2101](#).

Washington Law:

Washington Law (Electronic Waste). Washington requires manufacturers of TVs, computers, monitors, laptops, tablets, and/or P-DVD players to participate in the E-Cycle Washington product stewardship program. Manufacturers must be listed on the [Manufacturer Registration list](#), register annually with the state, pay an annual administrative fee, and participate in a recycling plan in order to sell in or into Washington. Covered products must also be permanently labeled with the manufacturer's brand (name or logo identifying an electronic product in the consumer marketplace and attributing the electronic product to a manufacturer). See <https://ecology.wa.gov/Regulations-Permits/Guidance-technical-assistance/Electronics-Ecycle-guidance-and-reports/Manufacturers> for additional information.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Maine (Electronic Waste Recycling). Manufacturer Responsibilities and Resources

According to Maine's Department of Environmental Protection website, “Maine's E-Waste Law sets up an Extended Producer Responsibility system to facilitate the recycling of Covered Electronic Devices from Covered Entities. . . Covered Entities are households, NGOs with 100 or fewer employees, k-12 schools, and businesses with 100 or fewer employees, so products designed for use by businesses are included in the law.” See [Department of Environmental Protection website](#).

Maine law requires CED manufacturers (defined as the brand owner or, if the brand owner has no U.S. presence, the first U.S. importer of the device) to affix a permanent label to each device identifying the manufacturer. Id.

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Federal Law:

See mandatory Radio Frequency Device requirements.

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law:

Radio Frequency Devices. Radio Frequency (RF) devices are required to be properly authorized under [47 C.F.R. Part 2](#) prior to being marketed or imported into the United States. The following is a key guidance document summarizing the FCC equipment authorization process: <https://www.fcc.gov/engineering-technology/laboratory-division/general/equipment-authorization>

In addition, any product with Bluetooth functionality will be considered an "intentional radiator" and will be subject to additional regulation by the Federal Communications Commission (FCC). Under the Regulations for Radio Frequency Devices, intentional radiators are subject to the general technical requirements of [47 C.F.R. § 15.15](#) including:

- Construction in accordance with good engineering and manufacturing practice;
- Emanation from device suppressed as much as practicable and shall not exceed levels specified in rules.

Energy Efficiency. See the Sun Charger, Electrical Charger, USB Charger card for mandatory standards applicable to Battery Charging Systems.

Please see the Batteries card for federal and state mandatory standards related to batteries.

California Law:

California Law (Batteries and Battery Charging Systems). If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements. There are also specific energy efficiency requirements for battery charging systems under California law; please see the corresponding section of the Sun Charger, Electrical Charger, USB Charger card for a description of these requirements.

[California Law \(Security of Connected Devices\)](#). California law requires that all manufacturers equip "connected devices" with reasonable security features. The law defines "connected device" as "any device, or other physical object that is capable of connecting to the internet, directly or indirectly, and that is assigned an internet protocol address or Bluetooth address." Cal.Civ Code § [1798.91.05](#). The specifications are as follows:

"(a) A manufacturer of a connected device shall equip the device with a reasonable security feature or features that are all of the following:

(1) Appropriate to the nature and function of the device.

(2) Appropriate to the information it may collect, contain, or transmit.

(3) Designed to protect the device and any information contained therein from unauthorized access, destruction, use, modification, or disclosure.

(b) Subject to all of the requirements of subdivision (a), if a connected device is equipped with a means for authentication outside a local area network, it shall be deemed a reasonable security feature under subdivision (a) if either of the following requirements are met:

(1) The preprogrammed password is unique to each device manufactured.

(2) The device contains a security feature that requires a user to generate a new means of authentication before access is granted to the device for the first time.

(c) A manufacturer of a connected device may elect to satisfy the requirements of subdivision (a) by ensuring the connected device does all of the following:

(1) Meets or exceeds the baseline product criteria of a NIST conforming labeling scheme.

(2) Satisfies a conformity assessment as described by a NIST conforming labeling scheme that includes a third-party test, inspection, or certification.

(3) Bears the binary label as described by a NIST conforming labeling scheme.”

Cal. Civ. Code [§ 1798.91.04](#).

“‘NIST conforming labeling scheme’ means a labeling scheme conforming to the Cybersecurity White Paper titled ‘Recommended Criteria for Cybersecurity Labeling for Consumer Internet of Things (IoT) Products’ published by the National Institute of Standards and Technology (NIST) on February 4, 2022, including any revisions or successor publications.” Cal. Civ. Code [§ 1798.91.05](#).

Voluntary Standards/Certifications:

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Federal Law:

Intentional Radiators. The following physical/mechanical FCC requirements apply to intentional radiators:

- Radio frequency range for intentional radiators must be investigated in accordance with requirements of [47 C.F.R. § 15.33\(a\)](#).
- Intentional radiators must comply with certain antenna requirements found at [47 C.F.R. § 15.203](#).
- Intentional radiators must not operate within certain specified frequency bands in [47 C.F.R. § 15.205](#).
- Intentional radiators generally must not exceed field strength levels specified in [47 C.F.R. § 15.209](#) as follows:

Frequency (MHz)	Field strength (microvolts/meter)	Measurement distance (meters)
0.009-0.490	2400/F(kHz)	300

0.490-1.705	24000/F(kHz)	30
1.705-30.0	30	30
30-88	100**	3
88-216	150**	3
216-960	200**	3
Above 960	500	3

- Certain provisions allow field strength beyond § 15.209 levels, but would subject device to more restrictive frequencies and types of operations. See [47 C.F.R. §§ 15.215 – 15.257](#).

Intentional radiators that are modular transmitters must comply with specific requirements for modular transmitters in [47 C.F.R. § 15.212](#).

Electrical aspects

What are requirements regarding electrical aspects ?

See Radio Frequency Device requirements above.

See the Batteries card for further information on regulations applicable to some batteries.

If the product has a battery charging system, see the corresponding section of the Sun Charger, Electrical Charger, USB Charger card.

Inflammability

Are there any specific requirements to ensure inflammability?

None identified.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Please see the Chemical Substances Attachment for additional information.

California Law:

California Law (RoHS-like requirements). Based on our understanding of Decathlon's electronic products with Bluetooth, it does not appear that these products will be in scope of California's RoHS-like legislation (restricting certain heavy metals in covered electronics). The RoHS-like restrictions apply to products screens greater than four inches in size (measured diagonally), that have playback functionality, and are either a:

1. Cathode ray tube containing devices (CRT devices)
2. Cathode ray tubes (CRTs)
3. Computer monitors containing cathode ray tubes
4. Laptop computers with liquid crystal display (LCD)
5. LCD containing desktop monitors
6. Televisions containing cathode ray tubes
7. Televisions containing liquid crystal display (LCD) screens
8. Plasma televisions
9. Portable DVD players with LCD screens

However, if any of the electronic products in other Decathlon categories fit the California covered electronic device definition, they would be subject to the material restrictions and reporting requirements in California. See the following laws, regulations, and websites for additional information:

- California's RoHS Law: [Cal. Health & Saf. Code §§ 25214.9-25214.10.2](#)
- California's RoHS regulations: [22 Cal. Code Regs. § 66260.202](#)

<https://dtsc.ca.gov/covered-electronic-devices/>

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

See Packaging Requirements Attachment.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Federal Law:

Radio Frequency Devices. See the Certifications/Registrations Tab for information regarding the type of testing required for various intentional radiator products. After July 13, 2016, products which must follow the Certification or Declaration of Conformity procedures are required to be tested by an FCC Recognized Accredited Testing Laboratory. Search for an accredited laboratory here: <https://apps.fcc.gov/oetcf/eas/reports/TestFirmSearch.cfm>.

California Law:

California Law (Proposition 65). Proposition 65 does not require testing, however, if a company is aware that a listed chemical is present and wishes to determine that a warning label is not required (e.g., to justify a decision not to provide a warning), testing may be conducted at any outside laboratory that is familiar with Proposition 65.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the Packaging Technical Requirements section above.

Please see the Batteries card for penalties related to violation of battery regulations.

Federal Law:

Radio Frequency Devices. The FCC may issue a cease-and-desist order to any person violating the FCC's radio frequency rules. [47 U.S.C. § 312\(b\)](#).

In addition, the act of selling or leasing, offering to sell or lease, or importing a digital device that has not gone through the appropriate FCC equipment authorization procedure that is a violation of the Commission's rules and federal law, and may be subject to:

- forfeiture of all non-compliant equipment
- an administrative fine of up to 10,000/day per violation
- up to \$100,000/\$200,000 criminal penalty for an individual/ organization
- a criminal fine totaling twice the gross gain obtained from sales of the non-compliant equipment

[47 C.F.R. § 95.313](#). Other than knowing and willful or repeated violations, most violations are settled via a negotiated civil penalty. See recent settlements for FCC enforcement actions related to radio frequency devices here: <https://www.fcc.gov/enforcement/orders>.

California Law:

California Law (Batteries and Battery Charging Systems). If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. There are also specific requirements for battery charging system under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 Cal. Code Regs. § 1609\(a\)\(2\)](#). The enforcement regulations provide for civil penalties up to a maximum of \$2,500 per unit. [20 Cal. Code Regs. § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the batteries card for additional details.

California Law (Proposition 65). Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Cal. Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

Illinois Law:

Illinois Law (Flame Retardants). A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation. [410 Ill. Comp. Stat. 48](#).

Maine Law:

Maine Law (Toxic Chemicals). Violators may be subject to a \$2,500 - \$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100 - \$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (Lead). This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following penalties apply or violations of the Maine Lead Law:

- For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.
- For all other violations the following provisions apply as penalties for violations of this section.
 - For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.
 - For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.
 - For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law:

Massachusetts Law (Lead). A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation. [M.G.L. c.111, § 196](#), [105 CMR 460](#). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (Banned Hazardous Substances). Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a fine between \$600 and \$3,000. [M.G.L. c.94B, § 4](#). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product. [M.G.L. c.94B, § 5](#). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New York Law:

New York Law (Flame Retardants). Violation of New York's law regarding brominated flame retardants is a misdemeanor; each product made, sold or offered for sale is a separate violation. [NY Env't Conserv. L. § 37-0111\(5\)](#).

Washington Law:

Washington Law (PBDE Ban). The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs). [R.C.W. § 70A.405.100](#). If compliance

is not achieved one year after the warning letter is sent, the Department of Ecology may assess civil penalties of up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Comments

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Please see the "Batteries" card for certification requirements related to batteries.

Federal Law:

FCC Equipment Authorization. The FCC requires "equipment authorizations" for intentional radiators. [47 C.F.R. § 15.201\(b\)](#). The procedures for equipment authorization for intentional radiators are provided in [47 C.F.R. § 2.906](#) et seq. This authorization includes:

- Application to a Telecommunications Certification Body (TCB). See [47 C.F.R. § 2.911](#);
- Submission of appropriate fee to FCC electronically via [Fee Filer](#), or by mail accompanied by Form 159 (see [47 C.F.R. § 1.1102](#) et seq. for fee schedules); and
- For "certification" level of equipment authorization, satisfy remaining requirements in [47 C.F.R. § 2.1031 — 2.1060](#), as applicable.

The exact application and approval procedure will depend on the technical features of the product and can fall in one of two categories: "Certification" (the most stringent); or "Declaration of Conformity" (slightly less stringent). To determine which category applies to a particular device, please see: <https://www.fcc.gov/engineering-technology/laboratory-division/general/equipment-authorization>. Except when otherwise stated in a rule, an intentional radiator is required to be approved using the certification procedure.

After conducting the required testing and the device is found to be in compliance, the approval process is finalized in different ways depending on the device's category. Sometimes a single device may have different components subject to different methods of authorization.

For devices following the "Certification" procedure, the responsible party (typically the manufacturer), obtains an FCC Registration Number ([FRN](#)) for the device. The FRN is a 10-digit number used to identify the individual or organization doing business with the FCC. The same FRN will be used for future approvals. The responsible party obtains a Grantee Code from the Commission by applying on the website at [Grantee Registration](#). A grantee code is required the first time a party applies for certification and can be used for all future approvals. The responsible party then applies to a Telecommunication Certification Body (TCB) for a grant of certification. An application for equipment authorization requires submission of information about the product, as listed in Section 2.1033 of the rules. The applicant must submit the required information to a [TCB](#) for review as part of the certification process.

Though unlikely applicable to intentional radiators, if other components of the device are subject to Declaration rather than Certification, the responsible party prepares a compliance information statement to be supplied with the product at the time of marketing. The responsible party maintains all of the required documentation demonstrating compliance with the applicable FCC rules.

The following is a key guidance document summarizing the FCC equipment authorization process: <https://www.fcc.gov/engineering-technology/laboratory-division/general/equipment-authorization>

Additionally, the FCC requires compliance with certain recordkeeping and inspection requirements:

- Maintain records list in [47 C.F.R. § 2.938](#) for one year following discontinuance of product certified (or until conclusion of any investigation).
- Device and certificate/technical data must be made available to FCC for inspection and/or testing upon reasonable request. [47 C.F.R. § 15.29](#).

California Law:

California Law (CEC Battery Charging System). Under the California Appliance Energy Efficiency Regulations for Battery Charger Systems ("BCS"), BCS must be certified prior to sale or offer for sale in California. Certified products will be listed on the California Energy Commissions Appliance Efficiency Database of certified BCS products. See the Sun Charger, Electrical Charger, USB Charger card for additional information and links. If a product in this category includes a BCS, please see the Batteries card for additional information on BCS certification.

Massachusetts Law:

Massachusetts Law (Mercury-Added Products). No mercury-added product shall be offered for final sale or use or distributed in the Commonwealth of Massachusetts without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section. [M.G.L. c.21H, § 6B](#).

Voluntary Standards/Certifications:

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Federal Law:

FCC Equipment Authorization. After July 13, 2016, products which must follow the Certification or Declaration of Conformity procedures are required to be tested by an FCC Recognized Accredited Testing Laboratory. Search for an accredited laboratory here: <https://apps.fcc.gov/oetcf/eas/reports/TestFirmSearch.cfm>.

California Law:

California Law (CEC Battery Charging System). If a product in this category includes a battery charging system ("BCS") as defined above, please see the Batteries card for additional information regarding certification of BCS under the California Energy Commission's standards.

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Federal Law:

FCC Equipment Authorization. The documentation required depends on the type of device and whether the device requires "Certification" (the most stringent); or "Declaration of Conformity" (slightly less stringent). Except when otherwise stated in a rule, an intentional radiator is required to be approved using the certification procedure.

For products subject to Certification, there must be an equipment authorization issued by the FCC or grant of Certification by a recognized Telecommunications Certification Body based on an application and test data submitted by the responsible party (e.g., the manufacturer or importer).

For products subject to a Declaration of Conformity, required documents include a test report and other information demonstrating compliance with the FCC rules (to be provided to the FCC upon request).

See the Certifications/Registrations tab for additional information.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

See the Certifications/Registrations section for information on the required format for the conformity documents.

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Please see the Batteries card for transportation requirements related to some batteries.

See Importation Rules Attachment.

Documents

What are the required documents ?

Federal Law:

Intentional Radiators. As of November 2, 2017, the requirement to submit a Form 740 has been eliminated, see [FCC-17-93](#). Importation of radio frequency equipment still requires that the product: (1) Have the required FCC equipment authorization; (2) Only be imported for evaluation purposes; (3) Only be imported for demonstration at a trade show; or (4) Meets one of the conditions as permitted in Section 2.1204.

If requested, the ultimate consignee must be ready to provide to Customs and/or the FCC the specific equipment authorization documentation. The documentation required depends on the equipment authorization procedure or procedures used:

- Supplier's Declaration of Conformity (SDoC) - The importer of record becomes the responsible party, and must be located within the United States and provide their name, address and telephone number or internet contact information as part of the compliance information for the end product documentation. The FCC has the right to request samples for inspection and submission of equipment for testing, and the test records as per the retention of records rules.
- Certification – The responsible party is the party to whom the grant of certification is issued. The importer can rely on the foreign manufacturer for obtaining a certificate (grant of certification). The FCC may request samples for certified

equipment for FCC inspection. If compliance issues arise, the grantee will be required to address those, or the grant may be subject to revocation or withdrawal of the equipment authorization. Withdrawal would result in the item not being able to be imported, marketed, or sold in the United States.

Entry Documents (for U.S. Imports generally). Within 15 calendar days of the date that a shipment arrives at a U.S. port of entry, entry documents must be filed at a location specified by the port director. These documents are:

- Entry Manifest (CBP Form 7533) or Application and Special Permit for Immediate Delivery (CBP Form 3461) or other form of merchandise release required by the port director,
- Evidence of right to make entry,
- Commercial invoice or a pro forma invoice when the commercial invoice cannot be produced,
- Packing lists, if appropriate,
- Other documents necessary to determine merchandise admissibility.
- If the goods are to be released from CBP custody at the time of entry, an entry summary for consumption must be filed and estimated duties deposited at the port of entry within 10 working days of the goods' entry

See U.S. CBP, Importing into the United States, 12, 35-37 (2006), (available at: <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>).

Also see section on Conformity Documents.

Time period

In which time period may we obtain the right to import ?

None specified. But see tips for new importers and exporters at <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>.

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection

OPA/CBP INFO Center

1300 Pennsylvania Avenue N.W., MS: 1345

Washington, DC 20229

United States of America

Comments

Comments

Inspection of the product

Inspection method

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section.

Federal Law:

Radio Frequency Devices. In addition, note that as a general rule, "no person may market a radio frequency device unless:

(1) For devices subject to authorization under certification, the device has been authorized in accordance with the rules in subpart J of this chapter and is properly identified and labeled as required by § 2.925 and other relevant sections in this chapter; or

(2) For devices subject to authorization under Supplier's Declaration of Conformity in accordance with the rules in subpart J of this part, the device complies with all applicable technical, labeling, identification and administrative requirements; or

(3) For devices that do not require a grant of equipment authorization under subpart J of this chapter but must comply with the specified technical standards prior to use, the device complies with all applicable, technical, labeling, identification and administrative requirements."

[47 C.F.R. § 2.803](#). For additional details and potential exemptions, see [47 C.F.R. § 2.803](#).

Documents

What are the required documents ?

See Certifications/Registrations section.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

None identified.

Display on internet

Is there some specific mentions to display the product on internet ?

None identified.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

See Labelling section of this card.

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

Federal Communications Commission

445 12th Street SW

Washington, DC 20554

[Phone: 1-888-225-5322](tel:1-888-225-5322)

Documents

[Decathlon - Chemical Substances Attachment.pdf](#)

[Decathlon - Importation Rules Attachment.pdf](#)

[Decathlon - Packaging Requirements Attachment.pdf](#)